RAMBAM'S LAWS OF REPENTANCE - HILCHOT TESHUVAH

What Is Olam HaBa? Crowns of Knowledge & the Shechinah's Splendour

Hilchot Teshuvah Perek 8

Sefer: Mishneh Torah, Hilchot Teshuvah (The Rambam's Laws of Repentance)

Chapter: 8, Halachot 1–4

Shiur: Given by Dayan Daniel Kada on Zoom, Tuesday 3 December 2024

These notes are based on the Sofer.ai transcript of the recording.

Introduction: Why Olam HaBa Here?

Why does the Rambam explain the World to Come inside **Hilchot Teshuvah**? Two reasons:

1. **Teshuvah is returning to Hashem**, and the end of that return is Olam HaBa.
2. **To prepare for Chapter 10.** There the Rambam teaches that one must serve Hashem **from love, not from fear or hope of reward.** Pirkei Avot tells how **Antigonos** taught *"don't be like servants who serve for reward,"* and his students **Tzadok and Baitos** concluded there is no reward and no World to Come, and founded the Sadducees and Boethusians. So before Chapter 10, the Rambam first establishes **that Olam HaBa exists and what it is** (Chapters 8–9).

Part 1: Karet, Revisited (Halacha 1)

הטובה הצפונה לצדיקים היא חיי העולם הבא... ופרעון הרשעים הוא שלא יזכו לחיים אלו, אלא יכרתו וימותו... וזהו הכרת הכתוב בתורה... מפי השמועה למדו: הכרת בעולם הזה, תכרת לעולם הבא. כלומר, אותה הנפש שפירשה מן הגוף בעולם הזה אינה זוכה לחיי העולם הבא, אלא גם מן העולם הבא נכרתת

Recap of last week: karet means having no future identity. But as Chapter 3 shows, some element remains that is aware of what it is missing.

Karet has no physical side

Look at the last line. The Gemara says **"cut off in this world, cut off in the next." Tosafot** and others read "cut off in this world" as **early death** (at 50, or 60, per various opinions); some say karet is both.

The Rambam **turns it around**: "cut off in this world" means **the soul's separation from the body at death**. Ordinary souls then go on to the next world; this one does not.

For the Rambam, karet is purely spiritual. It has no bearing on this physical world at all.

A famous "machloket" rethought: milah at 13

If a father did not circumcise his son and Beit Din didn't either, at **13 years and one day** the son must arrange his own **brit milah**. Milah and the **korban Pesach** are the only two positive commandments whose *omission* carries karet.

The Rambam writes the person **only becomes liable to karet when he dies uncircumcised**. The **Ra'avad** says he is **immediately** liable. This is "famously" presented in the yeshivah world as a dispute: karet at death versus karet at once.

The Rabbi: "they've all missed the point." Why would the Rambam delay the liability? He doesn't:

- He agrees you are **liable immediately** (and teshuvah, getting circumcised, removes it).

- But since karet **has no manifestation in this world**, it can only *take effect* after death.

- The Ra'avad, like Tosafot, thinks karet can show itself in this life (early or unusual death), so for him the liability bites now.

Karet vs. *mitah bidei shamayim*

	Karet	מיתה בידי שמים, death at the hands of Heaven
Example	Not doing milah; korban Pesach	A non-kohen eating terumah
Severity	Eternal	Less severe
After death	No identity, no Olam HaBa	**Death atones**, and you keep your identity for the World to Come, though you may undergo some (even severe) punishment
This world?	No	Possibly an early or unusual death, but not only that: the Rambam says a **suicide** is liable to *mitah bidei shamayim*, which cannot mean early death

(Rambam, Commentary on the Mishnah, Sanhedrin.)

Part 2: What Olam HaBa Is Not, and Is (Halacha 2)

The Rambam begins with what it is **not**:

העולם הבא אין בו גוף וגויה, אלא נפשות הצדיקים בלבד, בלא גוף, כמלאכי השרת. הואיל ואין בו גוויות, אין בו לא אכילה ולא שתייה... ולא יארע בו דבר מן הדברים שמארעין לגופות בעולם הזה, כגון ישיבה ועמידה ושינה ומיתה ועצב ושחוק וכיוצא בהן

The World to Come has no body or physical form, only the souls of the righteous without a body, like the ministering angels. Since there are no bodies, there is no eating or drinking… nor anything that happens to bodies: sitting, standing, sleeping, death, sadness, laughter and the like.

Then the Gemara (Berachot 17a):

העולם הבא אין בו לא אכילה ולא שתייה ולא תשמיש, אלא צדיקים יושבים ועטרותיהם בראשיהם ונהנים מזיו השכינה

In the World to Come there is no eating, drinking or marital relations; rather the righteous **sit with their crowns on their heads and enjoy the splendour of the Shechinah.**

"Rav used to say this often"

The Gemara introduces it with **מרגלא בפומיה דרב**: it was "a regular saying in Rav's mouth." He had to keep repeating it because people hold **corporeal ideas of the World to Come.**

"This is the tragedy of Jewish education nowadays." As the Rambam himself writes, children are taught with physical rewards (sweets, money, reputation), and that's appropriate for children. But people leave *cheder*, stop learning, and are "left with a childish conception… and therefore they think Judaism is a joke." And if you hold onto those childish ideas, "it's ridiculous to believe in something like that."

Three phrases, decoded

וזה שאמרו צדיקים יושבים, דרך חידה אמרו... כלומר הצדיקים מצויים שם בלא עמל ובלא יגיעה

Phrase	The Rambam	Meaning
צדיקים יושבים, the" righteous *sit*"	**A riddle**: they *exist* there **without toil or effort**	No chairs, no bodies. They simply *are*, tranquil, in the present
עטרותיהם בראשיהם, "crowns on their heads"	**דעת שידעו, שבגללה זכו לחיי העולם הבא, מצויה עמהן, והיא העטרה שלהן**: the knowledge they acquired, through which they merited Olam HaBa, stays with them; that is their crown	**"One of the most important lines to remember as Jews"**
נהנים מזיו השכינה, enjoy the splendour of" "the Shechinah	**שיודעים ומשיגים מאמיתת הקדוש ברוך הוא מה שאינם יודעים והם בגוף האפל השפל**: they know and grasp something of the truth of Hashem that they cannot while in the dark, lowly body	Understanding Godliness, according to the size of your crown

Crowns are metaphors

בעטרה שעטרה לו אמו (Shir HaShirim): nowhere does Tanach say Bat Sheva made Shlomo a crown; it means the **wisdom** she taught him.

ושמחת עולם על ראשם, "joy is not an object you can put on a head": joy is not an object you can put on a head": everlasting joy upon their heads.

Why knowledge?

Money can be lost; it is not intrinsic. **Knowledge is intrinsic.** It stays with you, not just in this world but forever, and you can keep thinking about it and developing it.

How big is your crown? It depends on how much you learned and understood in your 120 years. And the Shechinah's splendour is enjoyed **in proportion to the crown**.

"That's it. This is Olam HaBa." You exist, in tranquillity; your wisdom is your crown; and through it you understand Hashem as far as you are able, for eternity.

The stadium

The Rabbi's analogy: **Olam HaBa is a stadium, and Hashem, as it were, is the pitch.**

- A **huge crown** is a **box-club season ticket**, right at the front: you see and understand as much as a human can.

- A **small crown** is a seat right at the back, "but at least you're there, watching the game."

- **Karet** is the person **never admitted**, who still somehow knows there's an epic game going on that he's missing.

Mezuzah: not an amulet

"This is one of the things that really bother me." People say "put a mezuzah on every door, it will protect you." Chazal do say a mezuzah brings protection, **but we don't do the mitzvah for protection**, and someone who treats it that way turns mitzvot into personal benefits.

The Rambam (**Hilchot Mezuzah 6:13**): going in and out, you encounter the unity of Hashem, it wakes you up and you remember:

שאין שם דבר העומד לעולם ולעולמי עולמים אלא ידיעת צור העולם

There is nothing that endures forever and ever except **the knowledge of the Rock of the world.**

"Remember this line for life."

Questions from the class

Dementia (from the chat): if a person built a big crown and then forgot it? Dementia is a physical ailment. What you learned and forgot "is still part of your identity… you can't recall it, but it's there."

The harder question: someone born with a **low IQ** may have a very happy life but cannot grasp anything deep about Hashem. In the Rambam's terms he has a portion according to what he understood, but "I can't imagine it's going to be a big one." "It's not fair, and life isn't fair."

The anthropomorphist: the Rabbi knows religious people who daven three times a day yet picture Hashem sitting in heaven surrounded by the righteous. "According to the Rambam such a person is nothing… Belief in an anthropomorphic God is not a belief in God."

Joey Sharma: shouldn't a person be preparing for Olam HaBa all his life, the way we prepare all week for Shabbat? "Of course… all these small things create a beautiful identity." But if the **foundations** are wrong, "it's like a person who spends his whole life building a magnificent palace, a brick a day, a mitzvah a day, but the foundations are completely corroded. That palace is not going to last."

Part 3: The Ra'avad's Objection, and Techiyat HaMetim

The **Ra'avad** is sharp: "The words of this man seem to me close to one who says there is **no resurrection for bodies**, only for souls." Chazal speak of the righteous rising **in their clothes**, and of people asking not to be buried in white or black clothes because of the resurrection.

The answer (offered by a participant, and confirmed): **Techiyat HaMetim is not Olam HaBa.**

	Ra'avad (and many Rishonim)	The Rambam
Olam HaBa and Techiyat HaMetim	The same thing: you are resurrected *into* the World to Come, so it is physical	**Two different things**
Techiyat HaMetim		**Physical**: the dead return to this world. It is "one minor aspect"
Olam HaBa	Physical (bodies)	Purely spiritual: souls and intellect

The Rambam was accused throughout his life of denying resurrection, partly because of this halacha. He answered in his **Letter on Resurrection** (the class plans to study it in 2025): he never said resurrection isn't physical; people misread him because they **conflate it with Olam HaBa**.

Elsewhere he observes, with some irony, that hardly anyone asks about Olam HaBa. Instead they ask: **will the dead rise naked or clothed? in their burial shrouds? will they still be rich or poor?** "Pointless" questions about a small part of the picture.

The Ramchal (whose *Derech Hashem* some of the class learned) also speaks of a body in the World to Come, but clarifies he means a highly **elevated** form, like **Adam before the sin**, not corporeal flesh. Perhaps the Rishonim who spoke of bodies meant something like that.

The Rambam, later in this chapter, mocks the **crudely physical paradise** of other faiths (the "72 virgins"): why restrain yourself in this world to indulge in the next?

"Who is right? I'll leave it to you. We're learning the Rambam."

More questions

- **Without bodies, how will we recognise each other?** "Who said you need to? There are far greater things than chatting with your friends."
- **Joey:** will the resurrected return aged 10, or 90? "I actually don't know… it makes no difference." Exactly the kind of question the Rambam called beside the point.
- **Robert:** if resurrection happens once, what about people born afterwards? Does humanity end? The Rambam holds resurrection comes **once**, and there are strong grounds to say he holds **this world continues** (contrary to the Gemara's 6,000 years). "Let's park it… we will come to all of that."
- **"Gathered to his people"** (*ויאסף אל עמיו*): a meeting of like minds who understand Hashem. "Even in our physical bodies people are beginning to talk about telepathy."

Part 4: Which "Soul"? (Halacha 3)

> **כל נפש האמורה בעניין זה אינה הנשמה הצריכה לגוף, אלא צורת הנפש שהיא הדעה שהשיגה מהבורא כפי כוחה**

Every "soul" in this discussion is not the life-force the body needs, but the **form of the soul**: the knowledge it grasped of the Creator, according to its capacity.

Not this *nefesh*	This *nefesh*
The life-force that makes us "tick" (blood, digestion, sensation), shared with animals. A body just after death is the same body, minus this	**Da'at**: consciousness and intellect, the capacity to grasp abstract truths. Unique to humans; what lasts forever (Yesodei HaTorah, Chapter 4)

Because this life has no death (death belongs to bodies), it is called **צרור החיים**, the **bond of life**: **והיתה נפש אדוני צרורה בצרור החיים**, said by Avigail to David. Hence our prayer *"may his soul be bound up in the bond of life."* The Rabbi added in passing that whether things done *on behalf of* the deceased are effective is "something to consider," and the Rambam's view would probably be negative, "but that's not for now."

Part 5: Its Many Names (Halacha 4)

> **לטובה זו קראו הנביאים דרך משל בשמות הרבה: הר ה', ומקום קדשו, ודרך הקודש, וחצרות ה', ונועם ה', ואהל ה', והיכל ה', ובית ה', ושער ה'. והחכמים קראו לטובה זו המזומנת לצדיקים דרך משל סעודה, ובכל מקום קורין אותה העולם הבא**

"There's no mountain in heaven." When you read **מי יעלה בהר ה'** in Tehillim, think **Olam HaBa**. The Sages call it a **feast** (*se'udah*): "prepare yourself in the corridor so you may enter the banquet hall."

What name is missing? The Rabbi asked, and someone got it: **Gan Eden.** For the Rambam (and almost everyone), **Gan Eden is not Olam HaBa**. It is something different, and in the grand scheme much smaller. (It isn't a "VIP section" either; "Gan Eden is a different time.") The same applies to Mashiach and the rebuilding of the Beit HaMikdash: separate pieces that will be fitted into the framework.

"Kol Yisrael yesh lahem chelek la-Olam HaBa" means Olam HaBa in exactly this sense: everyone has *some* seat in the stadium.

Summary

1. **Karet** is purely spiritual; it can only take effect after death. The Rambam/Ra'avad "dispute" over milah at 13 is about *manifestation*, not liability.
2. **Mitah bidei shamayim** is different: death atones, identity survives.
3. **Olam HaBa has no bodies.** *"The righteous sit"* = exist without toil; *"crowns"* = the knowledge you acquired; *"enjoy the splendour of the Shechinah"* = grasping Hashem as you cannot in a body.
4. **Your crown is what you understood** and turned into who you are. "There is nothing that endures forever except the knowledge of the Rock of the world" (Hilchot Mezuzah).
5. **Techiyat HaMetim ≠ Olam HaBa.** Resurrection is physical and comparatively minor; Olam HaBa is spiritual. The Ra'avad conflated them.
6. The *nefesh* that lives on is **da'at**, not the animal life-force. All the Tanach's names (Har Hashem, Ohel Hashem…) refer to Olam HaBa; **Gan Eden is something else.**

Wisdom must come with action: **כל שחכמתו מרובה ממעשיו אין חכמתו מתקיימת**. That's why mitzvot matter too.

Coming Up

No shiur next week. In two weeks: the rest of Chapter 8, then fitting **Gan Eden, Mashiach, Techiyat HaMetim** and the rest into the Rambam's framework.

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